

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SANTA FE DISCOUNT CRUISE PARKING, INC., D/B/A EZ
CRUISE PARKING; LIGHTHOUSE PARKING INC; AND SYLVIA
ROBLEDO D/B/A 81ST DOLPHIN PARKING, *Complainants*

DOCKET NO. 14-06

v.

THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES;
AND THE GALVESTON PORT FACILITIES CORPORATION,
Respondents.

Served: August 8, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING JOINT STATUS REPORT

This proceeding has been pending since June 24, 2014. An Initial Decision was issued on December 4, 2015, and affirmed by the Commission on January 13, 2017. The proceeding was appealed and then remanded to the Commission by the D.C. Court of Appeals on May 11, 2018. The Commission remanded the proceeding to the Office of Administrative Law Judges (“OALJ”) on August 9, 2018, and an Initial Decision on Remand was issued on November 16, 2018. The Commission issued an Order on Initial Decision on Remand on April 16, 2021, remanding the proceeding to OALJ for determination of a narrow issue regarding reparations.

On April 20, 2021, the proceeding was reassigned to the undersigned due to the retirement of the previous Administrative Law Judge who was adjudicating the case and an order was served requiring the parties to file a joint status report. On May 17, 2021, prior to the filing of the joint status report, a Petition for Reconsideration and Unopposed Motion to Stay the Proceedings was filed with the Commission. The petition and unopposed motion pending before the Commission effectively stayed the proceeding before OALJ.

While the petition for reconsideration and stay was pending before the Commission, the parties filed their joint status report with proposed schedule on May 24, 2021, and then filed their briefs in conformity with their proposed schedule on June 30, 2021 (Complainants), and July 30, 2021 (Respondent). Therefore, the record is substantial and the parties have addressed the issues raised by the Commission’s initial remand decision. Additionally, the Commission approved a partial settlement on September 10, 2021, which resolved the dispute between Respondent and Complainants EZ Cruise Parking and Lighthouse Parking, leaving only the claim by Complainant 81st Dolphin Parking remaining. Respondent Galveston Port Facilities Corporation had been dismissed in the 2015 Initial Decision.

On June 2, 2022, the Commission issued an Order Granting in Part and Denying in Part Petition for Reconsideration (“Commission Remand Reconsideration Order”). The Commission Remand Reconsideration Order was inadvertently not distributed to or served on OALJ, an issued which has since been resolved. During OALJ’s routine docket review on August 4, 2022, the Commission Remand Reconsideration Order was discovered and subsequently served on OALJ the same day.

The Commission initially reversed the Initial Decision on Remand in part, finding that Respondent The Board of Trustees of the Galveston Wharves violated 46 U.S.C. § 41106(2) with respect to Complainants EZ Cruise and 81st Dolphin, and remanded for further proceedings on only a narrow issue of reparations for the § 41106(2) violations, stating:

The Commission therefore remands this case to the ALJ to consider an appropriate reparations award for the period of June 16, 2011, to July 31, 2014 for EZ Cruise and 81st Dolphin. The record has data on EZ Cruise and 81st Dolphin access fee payments for all months except July 2014. *See* Complainants’ App. at 45-56 (Galveston Wharves Historical Detailed Trial Balance, Access Fees); *id.* at 110-140, 234-271. On remand, EZ Cruise and 81st Dolphin would have the opportunity to prove the amount of access fees they paid that month. The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

Commission Remand Order at 39-40. EZ Cruise has since settled.

The Commission Remand Reconsideration Order states:

The Commission GRANTS the Board’s Petition for Reconsideration in part and ORDERS that on remand, the Board may introduce argument on when the reparations period for the selective enforcement claim should end, if not on July 31, 2014. The Board may also submit argument on remand on the method for calculating reparations. This order does not allow the parties to reopen or engage in additional discovery. The Commission DENIES the Petition in all other respects.

Commission Remand Reconsideration Order at 19.

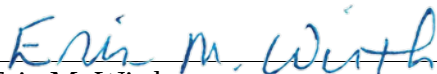
Pursuant to the Commission Remand Reconsideration Order, the parties will be allowed “to submit argument on the correct end-date for calculating reparations on the selective enforcement claim” and to “address the method for calculating reparations on remand.” *Id.* at 14, 17. The parties will not be permitted to reopen discovery. *Id.* The parties will not be permitted to argue or provide evidence on any other issues.

The remaining parties are hereby required to confer and file a joint status report with a proposed schedule for briefing the two remaining issues. Only briefing on the two issues remanded after reconsideration will be permitted. The joint status report should be filed by August 24, 2022.

The parties are required to discuss whether settlement of this proceeding is possible, to avoid the time and expense involved in litigating the reparations issue. The parties should state in the joint status report whether they have discussed settlement, but they should *not* provide their positions on settlement. If the parties are able to resolve this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement.

As a reminder, filings should be sent to the Office of the Secretary at secretary@fmc.gov, with a courtesy copy sent to judges@fmc.gov, and with opposing parties copied. The Commission has temporarily waived certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints. Docket No. 20-07, Order (May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf; *see also* Temporary Adjustments in FMC Operations (Mar. 19, 2020), www.fmc.gov/temporary-adjustments-in-fmc-operations. Therefore, email is the preferred means of filing.

For the reasons set forth above, the remaining parties are hereby **ORDERED** to confer and to file a joint status report with proposed schedule as outlined above on or before August 24, 2022.


Erin M. Wirth
Chief Administrative Law Judge